W012541-041426 - California Public Records Request

Message History (25)

On 11/6/2026 3:46:00 PM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W012541-041426
Body:
RE: PUBLIC RECORDS REQUEST of April 14, 2026, **Reference # W012541-041426**

Dear Brian C,

The City received the following records request from you on April 14, 2026.

This is a request under the California Public Records Act (Gov. Code § 7920.000 et seq.).

Background

The Flock Safety platform maintains a search audit log for each subscribing agency. This log is accessible to agency administrators and is exportable as a CSV file through a built-in "Download CSV" function on each agency's Flock transparency portal. At least 65 California law enforcement agencies currently publish this data on their public transparency pages, including seven San Mateo County agencies: Belmont PD, East Palo Alto PD, Foster City PD, Menlo Park PD, Pacifica PD, San Bruno PD, and South San Francisco PD.

*The published records contain the following fields per search: a unique search identifier, the search date and time, the number of networks queried, and the offense type or reason for the search. User identifiers are redacted to *** by the platform before export. The records do not contain license plate numbers, vehicle descriptions, locations, images, or any data captured by ALPR cameras. Two examples of published search audit exports are attached: Belmont PD (91 search records) and Foster City PD (36 search records), both downloaded from their public Flock transparency portals on April 10, 2026.*

Records Requested

The Flock Safety search audit log for the San Mateo Police Department, exported via the platform's existing "Download CSV" function, for the period from January 1, 2023 through the date of production. This is the same export available under the "Download CSV" link on each agency's Flock transparency portal. I am requesting the existing platform export, not a custom report.

If the Department's Flock transparency portal does not currently display a "Download CSV" or "Search Audit" section, I request records sufficient to show whether SMPD has opted out of or disabled the search audit publication feature in the Flock platform, and any communications with Flock Safety regarding that setting.

Anticipated Objections and Responses

The Department's response to PRA W012320-031126 denied similar records on three grounds. I address each to facilitate prompt processing:

"The California Public Records Act requires disclosure of existing identifiable records only and does not require an agency to create a new record."

This request is for an existing record. The Flock platform maintains the search audit log automatically. It is exportable through a built-in CSV download function — the same function that 65 other California agencies use to publish the data on their transparency portals. Clicking an export button to produce a file the platform already maintains is retrieval, not creation. (See County of Santa Clara v. Superior Court (2009) 170 Cal.App.4th 1301, 1336 ["If the information requested is in an electronic format, in a computer, the fact that the information must be compiled in a manner that is meaningful to the requester, i.e., generated in a report, does not turn the request into one for creation of a new record."])

Gov. Code § 7923.600 (records of investigation).

The search audit log contains administrative metadata: a unique ID, a timestamp, a network count, and an offense category. User identifiers are platform-redacted. The log does not contain license plate numbers, vehicle data, suspect information, case narratives, or any substantive investigative content. It is a usage log for an administrative system, comparable to a door access log or database query log — not an investigative record. The attached examples from Belmont PD and Foster City PD illustrate the format and content of these records.

To the extent any individual field (such as a case number) could be considered investigative, I request that field be redacted rather than the entire record withheld. The Act requires disclosure of reasonably segregable non-exempt portions. (Gov. Code § 7922.525.)

Civil Code § 1798.90.55(b) (ALPR sharing restrictions).

Section 1798.90.55(b) provides: "A public agency shall not sell, share, or transfer ALPR information, except to another public agency." Section 1798.90.5(b) defines "ALPR information" as "information or data collected through the use of an ALPR system." The search audit log is not collected through the use of an ALPR system. It is an administrative record of user activity within the Flock platform — recording who searched, when, and for what category of offense. It contains no plate reads, vehicle images, locations, or camera-captured data.

This distinction is not novel. At least 65 California agencies — including the seven San Mateo County departments listed above — publish this identical data on their public Flock transparency portals. These agencies have concluded, correctly, that search audit metadata is not "ALPR information" subject to § 1798.90.55(b).

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I have attached examples of the CSVs publicly available for Belmont and Foster City as an example of format, how to redact fields, and a demonstration of data that other local agencies have deemed to be suitable for public sharing.

As you are aware, we are releasing records on a rolling basis to show a good faith and diligent effort to complete your request. The next batch of records has been released and made available on the San Mateo Records Request Portal. You will be receiving more batches of responsive records in the future. Select the link below to view what is currently available.

Portions of your request are being withheld pursuant to Government Code section 7923.600, as they constitute law-enforcement investigative records.

We will further respond to your request with updates no later than 11/20/2026.

If you have any questions, please contact me using the below contact information.

Sincerely,

Jodi Ferreira
Senior Records Specialist
Police

On 10/26/2026 5:01:23 PM, Brian C wrote:

As you are aware, the Department's October 23, 2026 response to W013609-100926 answered item 1 (the Flock audit record of every search with R3-23-0055 in the reason or Case # field) by stating that "the platform does not support searches of the data using the specific categories identified in your request-case number or reason field," and that "to the extent that responsive queries exist, they will be included in the ongoing rolling production of audit logs provided to you under request #W012541-041426."

The W012541 releases contain thousands of search records, and portions of them, including reason field entries, are withheld under Gov. Code § 7923.600. A record is responsive to W013609 item 1 because of what its reason or Case # field contains. Where that field is withheld, nothing in the released record distinguishes a responsive search from any other. As released, I cannot tell which W012541 records, if any, are the W013609 item 1 records, or whether the Department's position is that every record in the W012541 production is responsive to it.

Gov. Code § 7922.600(a) provides that the agency "shall do all of the following, to the extent reasonable under the circumstances: (1) Assist the member of the public to identify records and information that are responsive to the request or to the purpose of the request, if stated. (2) Describe the information technology and physical location in which the records exist. (3) Provide suggestions for overcoming any practical basis for denying access to the records or information sought."

I'd ask that the Department:

1. Identify, by search ID, the records in the W012541 production that are responsive to W013609 item 1, in releases already made and in releases still to come. If the Department's position is that every W012541 record is responsive, or that it cannot identify which records are, please say so.

2. Describe the system and format in which the Department holds its Flock search audit records, including whether the Department holds or can download the Flock organization-audit export as a .csv or .xlsx file.

3. If the Department's position remains that it cannot locate these records by case number or reason, provide suggestions for overcoming that practical basis for denying access, as § 7922.600(a)(3) provides.

Thank you,

Brian

On 10/23/2026 7:09:01 PM, San Mateo Public Records Center wrote:

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Body:
RE: PUBLIC RECORDS REQUEST of April 14, 2026, **Reference # W012541-041426**
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As you are aware, we are releasing records on a rolling basis to show a good faith and diligent effort to complete your request. The next batch of records has been released and made available on the San Mateo Records Request Portal. You will be receiving more batches of responsive records in the future. Select the link below to view what is currently available.

Portions of your request are being withheld pursuant to Government Code section 7923.600, as they constitute law-enforcement investigative records.

This release has both 2026 logs, as well as requested 2023 log. Moving forward, we will prioritize processing the now 10 remaining months: August–September 2023, June–September 2024, and June–September 2025. We will further respond to your request with updates no later than 11/6/2026.

If you have any questions, please contact me using the below contact information.

Sincerely,
Jodi Ferreira
Senior Records Specialist
Police

On 10/17/2026 3:03:06 PM, Brian C wrote:

My 10/9 message hasn't had a reply, so I'm asking again for the estimated date when the remaining records will be made available.

Section 7922.535(a) provides that if an agency determines a request seeks disclosable public records, "the agency shall also state the estimated date and time when the records will be made available." The California Supreme Court restated that requirement this year: "The CPRA prescribes detailed procedures governing an agency's response to a public records request. … An agency is further required to 'state the estimated date and time when the records will be made available' if the agency 'determines that the request seeks disclosable public records.'" (City of Gilroy v. Superior Court (2026) 19 Cal.5th 38.) The Court added that "[o]ther provisions of the CPRA impose a general duty on agencies to act promptly," citing section 7922.500: "Nothing in this division shall be construed to permit an agency to delay or obstruct the inspection or copying of public records."

The Department's determination on this request came in its 4/27 and 4/28 messages, 13 and 14 days after the request, with no extension notice. It said records would be released on a rolling basis and gave dates for the next update, but did not state an estimated date when the records would be made available. Updates since then have given the date of the next update or release, but not that estimate.

Please provide the estimated date by which the Department expects to make the following available:

1. The 11 outstanding months (July–September 2023, June–September 2024 and June–September 2025), including whether all 11 will be in the October 23 release.

2. April–September 2026. The request covers January 1, 2023 through the date of production, and these months have not yet been produced under it.

Separately, please let me know when the Department expects to finish reissuing the earlier productions.

Gilroy also held that "[a]t a minimum, declaratory relief is available under the CPRA where the declaration would resolve an ongoing dispute regarding the parties' rights and obligations in a manner that has some likelihood of affecting future requests for public records or future conduct relating to such requests." If I haven't received an estimated date for items 1 and 2 by Friday, October 23, the date of the next release, I'll take that as the Department declining to provide the estimate section 7922.535(a) calls for.

Brian

On 10/9/2026 1:41:57 PM, Brian C wrote:

Thanks for prioritizing the 11 outstanding months, and for the October 23 date for the next release.

Will the October 23 release include all 11 outstanding months? If not, please let me know how many it will include and the estimated date by which the rest will be made available, along with an estimate for April–September 2026, which have not yet been produced under this request. Section 7922.535(a) provides that when an agency determines a request seeks disclosable public records, "the agency shall also state the estimated date and time when the records will be made available." My 10/8 message asked for that estimate. If the Department is declining to provide one, please say so.

When earlier productions are reissued, please keep the files as originally posted on the portal alongside the reissued versions, apart from the two June 2024 files already taken down.

Brian

On 10/9/2026 1:20:00 PM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W012541-041426
Body:
Hello,

We will prioritize processing the 11 remaining months: July–September 2023, June–September 2024, and June–September 2025. The next release is expected to be available in the portal by October 23. Once these months are completed, we will reissue the remaining records for January–June 2023, January–May 2024, January–May 2025, and January–September 2026. Our new process will improve efficiency and support more frequent and consistent releases.

Thank you,

Jodi Ferreira
Senior Records Specialist
Police

On 10/9/2026 12:01:48 PM, Brian C wrote:

Thanks for the update. My 10/8 message asked for the estimated date by which the remaining months will be made available, and the 10/9 update doesn't include one. Section 7922.535(a) provides that when an agency determines a request seeks disclosable public records, "the agency shall also state the estimated date and time when the records will be made available." The set is already known: of the 39 monthly logs the Department identified on 4/28, 11 remain (July–September 2023, June–September 2024 and June–September 2025). Please let me know the estimated date by which those 11 months will be made available.

The 10/9 update also gives no next-update date, so I'll take 10/21, from the 10/7 update, as the next one unless you tell me otherwise.

On the reissue: starting with the earliest production and proceeding chronologically puts the 28 months already released ahead of the 11 that haven't been produced. I'd ask that the outstanding months come first. When earlier productions are reissued, I'd ask that the files as originally posted stay posted alongside the reissued versions, apart from the two June 2024 files already taken down.

Brian

On 10/9/2026 11:32:00 AM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W012541-041426
Body:
Hello,

Over the past six months, the Department has experienced a significant increase in high-volume Public Records Act requests. We appreciate your continued patience as we work to review and produce responsive records. As previously communicated, the Department is restarting its production of records in chronological order using a newly implemented, streamlined redaction process. We anticipate that this process will improve efficiency and allow for more frequent and consistent releases. Due to technical limitations associated with processing and producing large volumes of records, documents will continue to be released in smaller, manageable batches on a rolling basis.

The Department has conducted a review of its redaction procedures in consideration of the information made publicly available through the Flock Safety Transparency Portal as well as the applicable Government Codes. As a result of that review, the Department has revised certain redaction practices applicable to the audit records being produced.
These revisions are intended to expand, rather than restrict, the information made available to the public. Accordingly, the Department will reissue previously produced audit records on a rolling basis on request #W012541-041426, beginning with the earliest production and proceeding chronologically.
The revised records will reflect the Department's updated redaction practices.

Thank you,

Jodi Ferreira
Senior Records Specialist
Police

On 10/8/2026 8:32:08 PM, Brian C wrote:

I see the two June 2024 audit files (PART_1 and PART_2) are no longer posted under W012541, though the 10/7 update didn't mention it. Thanks for taking them down. My 9/29 note asked that they be withdrawn and reissued, not only withdrawn. They're responsive records, so please post corrected copies here and let me know when to expect them.

With those files removed, the September updates under this request now amount to no records: the 9/9 update released none, and the 9/23 batch was those two files. The last month newly produced was May 2025, on 8/26.

Of the 39 monthly logs the Department identified on 4/28, 28 have been released and 11 remain: July–September 2023, June–September 2024 and June–September 2025. Of the six updates since 7/29, three each added one new month; one released nothing; one released the June 2024 files since withdrawn; and one (10/7) covered January 1–15, 2023, half of a month already produced. If that pace holds, the remaining months will take until about August 2027, and longer if updates continue to go to months already released. Re-producing released months while eleven are outstanding doesn't seem like an efficient use of the Department's resources. As the original request noted, the platform's existing CSV export would cover all remaining months in a single file, with withheld columns removed rather than redacted page by page.

For comparison, San Bruno released 27 months of its Flock audit log, as a spreadsheet, 69 days after it was requested, and Los Altos released its log in 22 days. This request is at 177 days and, at the pace of the last six updates, on track to take about 480 days in total. The 10/7 update describes the rolling release as "a good faith and diligent effort to complete your request." Please let me know the estimated date by which the remaining months will be made available (Gov. Code § 7922.535(a)).

Brian

On 10/7/2026 5:28:01 PM, San Mateo Public Records Center wrote:

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Body:
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Sincerely,

Jodi Ferreira
Senior Records Specialist
Police

On 9/23/2026 6:38:01 PM, San Mateo Public Records Center wrote:

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Police

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Background

The Flock Safety platform maintains a search audit log for each subscribing agency. This log is accessible to agency administrators and is exportable as a CSV file through a built-in "Download CSV" function on each agency's Flock transparency portal. At least 65 California law enforcement agencies currently publish this data on their public transparency pages, including seven San Mateo County agencies: Belmont PD, East Palo Alto PD, Foster City PD, Menlo Park PD, Pacifica PD, San Bruno PD, and South San Francisco PD.

*The published records contain the following fields per search: a unique search identifier, the search date and time, the number of networks queried, and the offense type or reason for the search. User identifiers are redacted to *** by the platform before export. The records do not contain license plate numbers, vehicle descriptions, locations, images, or any data captured by ALPR cameras. Two examples of published search audit exports are attached: Belmont PD (91 search records) and Foster City PD (36 search records), both downloaded from their public Flock transparency portals on April 10, 2026.*

Records Requested

The Flock Safety search audit log for the San Mateo Police Department, exported via the platform's existing "Download CSV" function, for the period from January 1, 2023 through the date of production. This is the same export available under the "Download CSV" link on each agency's Flock transparency portal. I am requesting the existing platform export, not a custom report.

If the Department's Flock transparency portal does not currently display a "Download CSV" or "Search Audit" section, I request records sufficient to show whether SMPD has opted out of or disabled the search audit publication feature in the Flock platform, and any communications with Flock Safety regarding that setting.

Anticipated Objections and Responses

The Department's response to PRA W012320-031126 denied similar records on three grounds. I address each to facilitate prompt processing:

"The California Public Records Act requires disclosure of existing identifiable records only and does not require an agency to create a new record."

This request is for an existing record. The Flock platform maintains the search audit log automatically. It is exportable through a built-in CSV download function — the same function that 65 other California agencies use to publish the data on their transparency portals. Clicking an export button to produce a file the platform already maintains is retrieval, not creation. (See County of Santa Clara v. Superior Court (2009) 170 Cal.App.4th 1301, 1336 ["If the information requested is in an electronic format, in a computer, the fact that the information must be compiled in a manner that is meaningful to the requester, i.e., generated in a report, does not turn the request into one for creation of a new record."])

Gov. Code § 7923.600 (records of investigation).

The search audit log contains administrative metadata: a unique ID, a timestamp, a network count, and an offense category. User identifiers are platform-redacted. The log does not contain license plate numbers, vehicle data, suspect information, case narratives, or any substantive investigative content. It is a usage log for an administrative system, comparable to a door access log or database query log — not an investigative record. The attached examples from Belmont PD and Foster City PD illustrate the format and content of these records.

To the extent any individual field (such as a case number) could be considered investigative, I request that field be redacted rather than the entire record withheld. The Act requires disclosure of reasonably segregable non-exempt portions. (Gov. Code § 7922.525.)

Civil Code § 1798.90.55(b) (ALPR sharing restrictions).

Section 1798.90.55(b) provides: "A public agency shall not sell, share, or transfer ALPR information, except to another public agency." Section 1798.90.5(b) defines "ALPR information" as "information or data collected through the use of an ALPR system." The search audit log is not collected through the use of an ALPR system. It is an administrative record of user activity within the Flock platform — recording who searched, when, and for what category of offense. It contains no plate reads, vehicle images, locations, or camera-captured data.

This distinction is not novel. At least 65 California agencies — including the seven San Mateo County departments listed above — publish this identical data on their public Flock transparency portals. These agencies have concluded, correctly, that search audit metadata is not "ALPR information" subject to § 1798.90.55(b).

If the Department maintains a different legal interpretation, I request that the response identify the specific legal analysis distinguishing SMPD's position from that of its peer agencies.

I have attached examples of the CSVs publicly available for Belmont and Foster City as an example of format, how to redact fields, and a demonstration of data that other local agencies have deemed to be suitable for public sharing.

As you are aware, we are releasing records on a rolling basis to show a good faith and diligent effort to complete your request. At this time, there are no additional responsive records available for release. We will continue to process the request and will provide additional records as they become available.

We will further respond to your request with updates no later than 9/23/26.

Sincerely,

Juliana Santiago
Management Analyst I
Police
(650) 522-7664

On 8/26/2026 4:00:16 PM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W012541-041426
Body:
RE: PUBLIC RECORDS REQUEST of April 14, 2026, **Reference # W012541-041426**

Dear Brian C,

The City received the following records request from you on April 14, 2026.

This is a request under the California Public Records Act (Gov. Code § 7920.000 et seq.).

Background

The Flock Safety platform maintains a search audit log for each subscribing agency. This log is accessible to agency administrators and is exportable as a CSV file through a built-in "Download CSV" function on each agency's Flock transparency portal. At least 65 California law enforcement agencies currently publish this data on their public transparency pages, including seven San Mateo County agencies: Belmont PD, East Palo Alto PD, Foster City PD, Menlo Park PD, Pacifica PD, San Bruno PD, and South San Francisco PD.

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If the Department's Flock transparency portal does not currently display a "Download CSV" or "Search Audit" section, I request records sufficient to show whether SMPD has opted out of or disabled the search audit publication feature in the Flock platform, and any communications with Flock Safety regarding that setting.

Anticipated Objections and Responses

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I have attached examples of the CSVs publicly available for Belmont and Foster City as an example of format, how to redact fields, and a demonstration of data that other local agencies have deemed to be suitable for public sharing.

As you are aware, we are releasing records on a rolling basis to show a good faith and diligent effort to complete your request. The next batch of records has been released and made available on the San Mateo Records Request Portal. You will be receiving more batches of responsive records in the future. Select the link below to view what is currently available.

Portions of your request are being withheld pursuant to Government Code section 7923.600, as they constitute law-enforcement investigative records.

We will further respond to your request with updates no later than 9/9/26.

If you have any questions, please contact me using the below contact information.

Sincerely,

Juliana Santiago
Management Analyst I
Police
(650) 522-7600

On 8/12/2026 12:14:00 PM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W012541-041426
Body:
RE: PUBLIC RECORDS REQUEST of April 14, 2026, **Reference # W012541-041426**

Dear Brian C,

The City received the following records request from you on April 14, 2026.

This is a request under the California Public Records Act (Gov. Code § 7920.000 et seq.).

Background

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Records Requested

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same export available under the "Download CSV" link on each agency's Flock transparency portal. I am requesting the existing platform export, not a custom report.

If the Department's Flock transparency portal does not currently display a "Download CSV" or "Search Audit" section, I request records sufficient to show whether SMPD has opted out of or disabled the search audit publication feature in the Flock platform, and any communications with Flock Safety regarding that setting.

Anticipated Objections and Responses

The Department's response to PRA W012320-031126 denied similar records on three grounds. I address each to facilitate prompt processing:

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This request is for an existing record. The Flock platform maintains the search audit log automatically. It is exportable through a built-in CSV download function — the same function that 65 other California agencies use to publish the data on their transparency portals. Clicking an export button to produce a file the platform already maintains is retrieval, not creation. (See County of Santa Clara v. Superior Court (2009) 170 Cal.App.4th 1301, 1336 ["If the information requested is in an electronic format, in a computer, the fact that the information must be compiled in a manner that is meaningful to the requester, i.e., generated in a report, does not turn the request into one for creation of a new record."])

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agencies have concluded, correctly, that search audit metadata is not "ALPR information" subject to § 1798.90.55(b).

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I have attached examples of the CSVs publicly available for Belmont and Foster City as an example of format, how to redact fields, and a demonstration of data that other local agencies have deemed to be suitable for public sharing.

As you are aware, we are releasing records on a rolling basis to show a good faith and diligent effort to complete your request. The next batch of records has been released and made available on the San Mateo Records Request Portal. You will be receiving more batches of responsive records in the future. Select the link below to view what is currently available.

We will further respond to your request with updates no later than 8/26/26.

If you have any questions, please contact me using the below contact information.

Sincerely,

Jennifer Maravillas
Captain-Support Services
Police
650-522-7633

On 7/29/2026 9:17:00 AM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W012541-041426
Body:
RE: PUBLIC RECORDS REQUEST of April 14, 2026, **Reference # W012541-041426**

Dear Brian C,

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Background

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We will further respond to your request with updates no later than 8/12/26.

If you have any questions, please contact me using the below contact information.

Sincerely,

Juliana Santiago
Management Analyst
Police
650-522-7600

On 7/15/2026 5:37:00 PM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W012541-041426
Body:
RE: PUBLIC RECORDS REQUEST of April 14, 2026, **Reference # W012541-041426**

Dear Brian C,

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Background

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Records Requested

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Anticipated Objections and Responses

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If you have any questions, please contact me using the below contact information.

Sincerely,

Juliana Santiago
Management Analyst
Police

650-522-7600

On 7/1/2026 11:55:09 AM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W012541-041426
Body:
RE: PUBLIC RECORDS REQUEST of April 14, 2026, **Reference # W012541-041426**

Dear Brian C,

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Background

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If you have any questions, please contact me using the below contact information.

Sincerely,

Juliana Santiago
Management Analyst
Police
650-522-7600

On 6/17/2026 2:34:01 PM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W012541-041426
Body:
RE: PUBLIC RECORDS REQUEST of April 14, 2026, **Reference # W012541-041426**

Dear Brian C,

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This is a request under the California Public Records Act (Gov. Code § 7920.000 et seq.).

Background

The Flock Safety platform maintains a search audit log for each subscribing agency. This log is accessible to agency administrators and is exportable as a CSV file through a built-in "Download CSV" function on each agency's Flock transparency portal. At least 65 California law enforcement agencies currently publish this data on their public transparency pages, including seven San Mateo County agencies: Belmont PD, East Palo Alto PD, Foster City PD, Menlo Park PD, Pacifica PD, San Bruno PD, and South San Francisco PD.

*The published records contain the following fields per search: a unique search identifier, the search date and time, the number of networks queried, and the offense type or reason for the search. User identifiers are redacted to *** by the platform before export. The records do not contain license plate numbers, vehicle descriptions, locations, images, or any data captured by ALPR cameras. Two examples of published search audit exports are attached: Belmont PD (91 search records) and Foster City PD (36 search records), both downloaded from their public Flock transparency portals on April 10, 2026.*

Records Requested

The Flock Safety search audit log for the San Mateo Police Department, exported via the platform's existing "Download CSV" function, for the period from January 1, 2023 through the date of production. This is the same export available under the "Download CSV" link on each agency's Flock transparency portal. I am requesting the existing platform export, not a custom report.

If the Department's Flock transparency portal does not currently display a "Download CSV" or "Search Audit" section, I request records sufficient to show whether SMPD has opted out of or disabled the search audit publication feature in the Flock platform, and any communications with Flock Safety regarding that setting.

Anticipated Objections and Responses

The Department's response to PRA W012320-031126 denied similar records on three grounds. I address each to facilitate prompt processing:

"The California Public Records Act requires disclosure of existing identifiable records only and does not require an agency to create a new record."

This request is for an existing record. The Flock platform maintains the search audit log automatically. It is exportable through a built-in CSV download function — the same function that 65 other California agencies use to publish the data on their transparency portals. Clicking an export button to produce a file the platform already maintains is retrieval, not creation. (See County of Santa Clara v. Superior Court (2009) 170 Cal.App.4th 1301, 1336 ["If the information requested is in an electronic format, in a computer, the fact that the information must be compiled in a manner that is meaningful to the requester, i.e., generated in a report, does not turn the request into one for creation of a new record."])

Gov. Code § 7923.600 (records of investigation).

The search audit log contains administrative metadata: a unique ID, a timestamp, a network count, and an offense category. User identifiers are platform-redacted. The log does not contain license plate numbers, vehicle data, suspect information, case narratives, or any substantive investigative content. It is a usage log for an administrative system, comparable to a door access log or database query log — not an investigative record. The attached examples from Belmont PD and Foster City PD illustrate the format and content of these records.

To the extent any individual field (such as a case number) could be considered investigative, I request that field be redacted rather than the entire record withheld. The Act requires disclosure of reasonably segregable non-exempt portions. (Gov. Code § 7922.525.)

Civil Code § 1798.90.55(b) (ALPR sharing restrictions).

Section 1798.90.55(b) provides: "A public agency shall not sell, share, or transfer ALPR information, except to another public agency." Section 1798.90.5(b) defines "ALPR information" as "information or data collected through the use of an ALPR system." The search audit log is not collected through the use of an ALPR system. It is an administrative record of user activity within the Flock platform — recording who searched, when, and for what category of offense. It contains no plate reads, vehicle images, locations, or camera-captured data.

This distinction is not novel. At least 65 California agencies — including the seven San Mateo County departments listed above — publish this identical data on their public Flock transparency portals. These agencies have concluded, correctly, that search audit metadata is not "ALPR information" subject to § 1798.90.55(b).

If the Department maintains a different legal interpretation, I request that the response identify the specific legal analysis distinguishing SMPD's position from that of its peer agencies.

I have attached examples of the CSVs publicly available for Belmont and Foster City as an example of format, how to redact fields, and a demonstration of data that other local agencies have deemed to be suitable for public sharing.

As you are aware, we are releasing records on a rolling basis to show a good faith and diligent effort to complete your request. The next batch of records has been released and made available on the San Mateo Records Request Portal. You will be receiving more batches of responsive records in the future. Select the link below to view what is currently available.

We will further respond to your request with updates no later than 07/01/26.

If you have any questions, please contact me using the below contact information.

Sincerely,

Juliana Santiago

Management Analyst
Police
650-522-7600

On 6/3/2026 5:29:00 PM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W012541-041426
Body:
RE: PUBLIC RECORDS REQUEST of April 14, 2026, **Reference # W012541-041426**

Dear Brian C,

The City received the following records request from you on April 14, 2026.

This is a request under the California Public Records Act (Gov. Code § 7920.000 et seq.).

Background

The Flock Safety platform maintains a search audit log for each subscribing agency. This log is accessible to agency administrators and is exportable as a CSV file through a built-in "Download CSV" function on each agency's Flock transparency portal. At least 65 California law enforcement agencies currently publish this data on their public transparency pages, including seven San Mateo County agencies: Belmont PD, East Palo Alto PD, Foster City PD, Menlo Park PD, Pacifica PD, San Bruno PD, and South San Francisco PD.

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Records Requested

The Flock Safety search audit log for the San Mateo Police Department, exported via the platform's existing "Download CSV" function, for the period from January 1, 2023 through the date of production. This is the same export available under the "Download CSV" link on each agency's Flock transparency portal. I am requesting the existing platform export, not a custom report.

If the Department's Flock transparency portal does not currently display a "Download CSV" or "Search Audit" section, I request records sufficient to show whether SMPD has opted out of or disabled the search audit publication feature in the Flock platform, and any communications with Flock Safety regarding that setting.

Anticipated Objections and Responses

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"The California Public Records Act requires disclosure of existing identifiable records only and does not require an agency to create a new record."

This request is for an existing record. The Flock platform maintains the search audit log automatically. It is exportable through a built-in CSV download function — the same function that 65 other California agencies use to publish the data on their transparency portals. Clicking an export button to produce a file the platform already maintains is retrieval, not creation. (See County of Santa Clara v. Superior Court (2009) 170 Cal.App.4th 1301, 1336 ["If the information requested is in an electronic format, in a computer, the fact that the information must be compiled in a manner that is meaningful to the requester, i.e., generated in a report, does not turn the request into one for creation of a new record."])

Gov. Code § 7923.600 (records of investigation).

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I have attached examples of the CSVs publicly available for Belmont and Foster City as an example of format, how to redact fields, and a demonstration of data that other local agencies have deemed to be suitable for public sharing.

As you are aware, we are releasing records on a rolling basis to show a good faith and diligent effort to complete your request. The next batch of records has been released and made available on the San Mateo Records Request Portal. You will be receiving more batches of responsive records in the future. Select the link below to view what is currently available.

We will further respond to your request with updates no later than 6/17/26.

If you have any questions, please contact me using the below contact information.

Sincerely,

Juliana Santiago
Management Analyst
Police
650-522-7600

On 5/21/2026 11:40:01 AM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W012541-041426
Body:
RE: PUBLIC RECORDS REQUEST of April 14, 2026, **Reference # W012541-041426**

Dear Brian C,

The City received the following records request from you on April 14, 2026.

This is a request under the California Public Records Act (Gov. Code § 7920.000 et seq.).

Background

The Flock Safety platform maintains a search audit log for each subscribing agency. This log is accessible to agency administrators and is exportable as a CSV file through a built-in "Download CSV" function on each agency's Flock transparency portal. At least 65 California law enforcement agencies currently publish this data on their public transparency pages, including seven San Mateo County agencies: Belmont PD, East Palo Alto PD, Foster City PD, Menlo Park PD, Pacifica PD, San Bruno PD, and South San Francisco PD.

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Records Requested

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If the Department's Flock transparency portal does not currently display a "Download CSV" or "Search Audit" section, I request records sufficient to show whether SMPD has opted out of or disabled the search audit publication feature in the Flock platform, and any communications with Flock Safety regarding that setting.

Anticipated Objections and Responses

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As you are aware, we are releasing records on a rolling basis to show a good faith and diligent effort to complete your request. The next batch of records has been released and made available on the San Mateo Records Request Portal. You will be receiving more batches of responsive records in the future. Select the link below to view what is currently available.

We will further respond to your request with updates no later than 6/4/26.

If you have any questions, please contact me using the below contact information.

Sincerely,

Juliana Santiago
Management Analyst
Police

650-522-7600

On 5/11/2026 11:12:20 AM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W012541-041426
Body:
RE: PUBLIC RECORDS REQUEST of April 14, 2026, **Reference # W012541-041426**

Dear Brian C,

The City received the following records request from you on April 14, 2026.

This is a request under the California Public Records Act (Gov. Code § 7920.000 et seq.).

Background

The Flock Safety platform maintains a search audit log for each subscribing agency. This log is accessible to agency administrators and is exportable as a CSV file through a built-in "Download CSV" function on each agency's Flock transparency portal. At least 65 California law enforcement agencies currently publish this data on their public transparency pages, including seven San Mateo County agencies: Belmont PD, East Palo Alto PD, Foster City PD, Menlo Park PD, Pacifica PD, San Bruno PD, and South San Francisco PD.

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Records Requested

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If the Department's Flock transparency portal does not currently display a "Download CSV" or "Search Audit" section, I request records sufficient to show whether SMPD has opted out of or disabled the search audit publication feature in the Flock platform, and any communications with Flock Safety regarding that setting.

Anticipated Objections and Responses

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As you are aware, we are releasing records on a rolling basis to show a good faith and diligent effort to complete your request. The next batch of records has been released and made available on the San Mateo Records Request Portal. You will be receiving more batches of responsive records in the future. Select the link

below to view what is currently available.

We will further respond to your request with updates no later than 05/25/26.

If you have any questions, please contact me using the below contact information.

Sincerely,

Juliana Santiago
Management Analyst
San Mateo Police Department
650-522-7600

On 4/28/2026 3:05:00 PM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W012541-041426
Body:
RE: PUBLIC RECORDS REQUEST of April 14, 2026, **Reference # W012541-041426**

Dear Brian C,

The City received the following records request from you on April 14, 2026.

This is a request under the California Public Records Act (Gov. Code § 7920.000 et seq.).

Background

The Flock Safety platform maintains a search audit log for each subscribing agency. This log is accessible to agency administrators and is exportable as a CSV file through a built-in "Download CSV" function on each agency's Flock transparency portal. At least 65 California law enforcement agencies currently publish this data on their public transparency pages, including seven San Mateo County agencies: Belmont PD, East Palo Alto PD, Foster City PD, Menlo Park PD, Pacifica PD, San Bruno PD, and South San Francisco PD.

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Records Requested

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If the Department's Flock transparency portal does not currently display a "Download CSV" or "Search Audit" section, I request records sufficient to show whether SMPD has opted out of or disabled the search audit publication feature in the Flock platform, and any communications with Flock Safety regarding that setting.

Anticipated Objections and Responses

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We will further respond to your request with updates no later than 5/11/26.

If you have any questions, please contact me using the below contact information.

Sincerely,

Jennifer Maravillas
Captain-Support Services
Police
650-522-7633

On 4/27/2026 10:01:01 AM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W012541-041426
Body:
RE: PUBLIC RECORDS REQUEST of April 14, 2026, **Reference # W012541-041426**

Dear Brian C,

The City received the following records request from you on April 14, 2026.

This is a request under the California Public Records Act (Gov. Code § 7920.000 et seq.).

Background

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Records Requested

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Anticipated Objections and Responses

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I have attached examples of the CSVs publicly available for Belmont and Foster City as an example of format, how to redact fields, and a demonstration of data that other local agencies have deemed to be suitable for public sharing.

Due to the large number of records which are associated with this request, the City will send you records on a rolling production basis. We should have an initial batch of responsive records by the end of this week.

We will further respond to your request with updates no later than Friday, 5/1/26.

If you have any questions, please contact me using the below contact information.

Sincerely,

Jennifer Maravillas
Captain-Support Services
Police
650-522-7633

On 4/14/2026 9:00:41 PM, Brian C wrote:

Request Created on Public Portal

On 4/14/2026 9:00:40 PM, San Mateo Public Records Center wrote:

Thank you for your interest in public records of the City of San Mateo. Your request was received by the City of San Mateo on 4/14/2026 and given the reference number **W012541-041426** for tracking purposes.

Record(s) Requested: **This is a request under the California Public Records Act (Gov. Code § 7920.000 et seq.).**

Background

The Flock Safety platform maintains a search audit log for each subscribing agency. This log is accessible to agency administrators and is exportable as a CSV file through a built-in "Download CSV" function on each agency's Flock transparency portal. At least 65 California law enforcement agencies currently publish this data on their public transparency pages, including seven San Mateo County agencies: Belmont PD, East Palo Alto PD, Foster City PD, Menlo Park PD, Pacifica PD, San Bruno PD, and South San Francisco PD.

The published records contain the following fields per search: a unique search identifier, the search date and time, the number of networks queried, and the offense type or reason for the search. User identifiers are redacted to * by the platform before export. The records do not contain license plate numbers, vehicle descriptions, locations, images, or any data captured by ALPR cameras. Two examples of published search audit exports are attached: Belmont PD (91 search records) and Foster City PD (36 search records), both downloaded from their public Flock transparency portals on April 10, 2026.**

Records Requested

The Flock Safety search audit log for the San Mateo Police Department, exported via the platform's existing "Download CSV" function, for the period from January 1, 2023 through the date of production. This is the same export available under the "Download CSV" link on each agency's Flock transparency portal. I am requesting the existing platform export, not a custom report.

If the Department's Flock transparency portal does not currently display a "Download CSV" or "Search Audit" section, I request records sufficient to show whether SMPD has opted out of or disabled the

search audit publication feature in the Flock platform, and any communications with Flock Safety regarding that setting.

Anticipated Objections and Responses

The Department's response to PRA W012320-031126 denied similar records on three grounds. I address each to facilitate prompt processing:

"The California Public Records Act requires disclosure of existing identifiable records only and does not require an agency to create a new record."

This request is for an existing record. The Flock platform maintains the search audit log automatically. It is exportable through a built-in CSV download function — the same function that 65 other California agencies use to publish the data on their transparency portals. Clicking an export button to produce a file the platform already maintains is retrieval, not creation. (See County of Santa Clara v. Superior Court (2009) 170 Cal.App.4th 1301, 1336 ["If the information requested is in an electronic format, in a computer, the fact that the information must be compiled in a manner that is meaningful to the requester, i.e., generated in a report, does not turn the request into one for creation of a new record."])

Gov. Code § 7923.600 (records of investigation).

The search audit log contains administrative metadata: a unique ID, a timestamp, a network count, and an offense category. User identifiers are platform-redacted. The log does not contain license plate numbers, vehicle data, suspect information, case narratives, or any substantive investigative content. It is a usage log for an administrative system, comparable to a door access log or database query log — not an investigative record. The attached examples from Belmont PD and Foster City PD illustrate the format and content of these records.

To the extent any individual field (such as a case number) could be considered investigative, I request that field be redacted rather than the entire record withheld. The Act requires disclosure of reasonably segregable non-exempt portions. (Gov. Code § 7922.525.)

Civil Code § 1798.90.55(b) (ALPR sharing restrictions).

Section 1798.90.55(b) provides: "A public agency shall not sell, share, or transfer ALPR information, except to another public agency." Section 1798.90.5(b) defines "ALPR information" as "information or data collected through the use of an ALPR system." The search audit log is not collected through the use of an ALPR system. It is an administrative record of user activity within the Flock platform — recording who searched, when, and for what category of offense. It contains no plate reads, vehicle images, locations, or camera-captured data.

This distinction is not novel. At least 65 California agencies — including the seven San Mateo County departments listed above — publish this identical data on their public Flock transparency portals. These agencies have concluded, correctly, that search audit metadata is not "ALPR information" subject to § 1798.90.55(b).

If the Department maintains a different legal interpretation, I request that the response identify the specific legal analysis distinguishing SMPD's position from that of its peer agencies.

I have attached examples of the CSVs publicly available for Belmont and Foster City as an example of format, how to redact fields, and a demonstration of data that other local agencies have deemed to be suitable for public sharing.

The request is being forwarded to appropriate department(s) for processing.

Monitor request progress at the link below. The City will email you when the request is complete. Thank you for using the San Mateo Records Center.

To monitor the progress or update this request please log into the San Mateo Records Center.